

2. **Assignees take differently from heirs and executors.**—The operation of the Bankruptcy Acts was thus commented upon by Lord Chief Justice Willes:—"The assignees under a commission of bankruptcy, are not to be considered as *general assignees* of all the real and personal estate of which the bankrupt was seised and possessed, as *heirs* and *executors* are of the estate of their ancestors and testators, for nothing vests in the assignees even at law but such real and personal estate of the bankrupt in which he had the equitable as well as legal interest, and which is to be applied to the payment of the bankrupt's debts" (*c*).

3. **The trust estate does not pass to the trustees in bankruptcy of the trustee.**—It is clear, therefore, that in the case of a *bare trust*, the property, whether real (*d*) or personal (*e*), did not vest by the bankruptcy in the assignees, even *at law*. And the proposition applies not only to *express trustees*, but also to *trustees virtute officii*, as executors, administra-

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| (<i>c</i>) <i>Scott v. Surman</i> , Willes, 402. | 619; <i>Carpenter v. Marnell</i> , 3 B. & P. |
| (<i>d</i>) <i>Ex parte Gennys</i> , 1 Mont. & Mac. 258; <i>Houghton v. Kœnig</i> , 18 C. B. 235. | 40; <i>Gladstone v. Hadwen</i> , 1 M. & S. 517; <i>Boddington v. Castelli</i> , 1 Ell. & Bl. 879; <i>Westoby v. Day</i> , 2 Ell. & Bl. 605. |
| (<i>e</i>) See <i>Winch v. Keeley</i> , 1 T. R. | |

does not of itself change his fiduciary relation; *Belknap v. Belknap*, 5 Allen, 468. Where the trustee gives bonds, as he is generally required to in the United States, the financial standing of the trustee would seem to be a matter of minor importance, and would not affect the trust unless brought about by the misconduct of the trustee. Ordinarily, trustees cannot be relieved after beginning to act as such, without some sufficient cause shown; *Jones v. Stockett*, 2 Bland, 409; *Cruger v. Halliday*, 11 Paige, 314; *Craig v. Craig*, 3 Barb. Ch. 76; but where the trustee served for no definite time and gratuitously, it was held that he might be relieved at his convenience; *Bogle v. Bogle*, 3 Allen, 158; the expense of change of transfer falls on trustee when he is the cause of it; *In re Jones*, 4 Sandf. Ch. 615; *Howard v. Rhodes*, 1 Keen, 581, but see *Coventry v. Coventry*, 1 Keen, 758.

If an equitable life tenant becomes insolvent, the trustee holds his interest subject to his assignees; *Wells v. Ely*, 3 Stock. 172. Trust estates are sometimes limited to the bankruptcy of trustee or *cestui que trust*, so that the trusts are thereby terminated; *Commonwealth v. Stauffer*, 10 Barr. 350; *Stagg v. Beekman*, 2 Edw. Ch. 89; *Girard Ins. Co. v. Chambers*, 46 Pa. St. 485; *Maddox v. Maddox*, 11 Gratt. 804. Property cannot be settled on one's self with a limitation over if he becomes bankrupt; *Braman v. Stiles*, 2 Pick. 463; *Pope v. Elliott*, 8 B. Mon. 56; *Graff v. Bonnett*, 31 N. Y. 19. See note on assignments for the benefit of creditors.